

CHAPTER 102

Festival of Britain (Supplementary Provisions) Act, 1949

ARRANGEMENT OF SECTIONS

Section

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An Act to make, in connection with the Festival of Britain, 1951, provision for festival gardens in Battersea Park and further provision as respects river traffic and as respects buildings, structures, works and entertainments; and for purposes connected therewith.

[16th December 1949.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) For the purpose of providing festival gardens as part of the Festival of Britain, 1951, the County Council may enclose any lands in Battersea Park not exceeding in the aggregate forty acres in area, and may authorise the Company, and any person appointed by the Company,—

(a) to take possession of and hold any of the lands so enclosed free from the right of the public to use the said lands as part of Battersea Park; and

(b) in any part of Battersea Park not so enclosed, to execute such works as the County Council may in writing approve as being ancillary to and expedient for the purposes of the gardens,

during such period and subject to such provisions as to reinstatement as are hereinafter provided.

(2) Any authorisation given under the foregoing subsection shall be subject to such terms and conditions (including terms as to payment by the Company for possession of the lands) as may be agreed between the County Council and the Company.

(3) The County Council may agree with the Company for the exercise on behalf of one party to the agreement, in relation to the gardens, of any powers of that party by the other party

to the agreement; and an agreement under this subsection may contain such provisions as to payment and any other matters as may be agreed between the parties thereto.

**Loans to
Company.**

2.—(1) The Minister may with the approval of the Treasury make loans to the Company of an amount not exceeding five hundred and seventy thousand pounds.

(2) For the purpose of enabling the County Council to make loans to the Company, the London County Council (Money) Act, 1949 shall have effect as if, in the first column of Part II of the Schedule to that Act (which specifies the bodies and persons to whom loans may be made) there were inserted a reference to the Company and in the second and third columns of the said Part II (which respectively specify the amounts of loans authorised during the year ending with the thirty-first day of March, nineteen hundred and fifty, and the six months ending with the thirtieth day of September, nineteen hundred and fifty) there were inserted, in relation to the Company, an amount of twenty-five thousand pounds and an amount of one hundred thousand pounds respectively.

(3) The powers conferred by the two last foregoing subsections shall be exercisable in accordance with an agreement made between the Minister, the County Council and the Company, and in particular upon such terms as to payment of interest, repayment of capital and security (if any) as may be specified in the agreement.

(4) The Minister may with the approval of the Treasury at any time release the whole or any part of a claim against the Company in respect of any loan made by him under this section; and the County Council may at any time release the whole or any part of any claim against the Company in respect of any loan so made by them.

(5) The County Council may take shares in the Company and may defray the cost of such other shares in the Company as it is necessary to take in order to give effect to any arrangements for the representation of the Council on the board of directors of the Company.

(6) The County Council may make available to the Company any equipment or other goods belonging to the Council.

(7) The receipts of the Minister in respect of interest on, and the repayment of, any loan made by him under this section shall be paid into the Exchequer.

**Reinstatement
and laying-
open of
gardens, etc.**

3.—(1) Subject to the provisions of this section, the Company shall, as soon as may be after the appointed day, do such things as are necessary to reinstate to the satisfaction of the County Council the sites of the gardens and of any works authorised under paragraph (b) of subsection (1) of section one of this Act.

(2) If it appears to the County Council that it is desirable that any buildings or works erected or carried out for the purposes of the gardens should be retained for the benefit of persons resorting to Battersea Park, the Council may agree with the Company (upon such terms (if any) as to payment as may be specified in the agreement) that the buildings or works shall be so retained; and where such an agreement is made—

(a) the Council shall have power to maintain the buildings or works and to use them either for the purpose for which they were used in connection with the gardens or for any purpose for which the Council would apart from this section have power to provide the buildings or works, and

(b) the last foregoing subsection shall not apply as respects the buildings or works.

(3) If and in so far as the Company fail within a reasonable time to comply with their obligations under subsection (1) of this section, it shall be the duty of the County Council to reinstate the sites in question as appears to them requisite; and any expenditure reasonably incurred by the County Council under this subsection shall be recoverable from the Company.

(4) Nothing in section one of this Act shall authorise the enclosure of any of the lands referred to in subsection (1) of that section, or the holding thereof by the Company or any other person, after the expiration of such period from the appointed day as the Minister of Health may by order allow to give time for the reinstatement of the gardens as required by the foregoing provisions of this section.

The period allowed by order under this subsection may be from time to time extended by a further order thereunder.

4.—(1) The execution of works and the carrying on of any activity for the purposes of the gardens before the appointed day, and the execution of any works authorised or required by any other provision of this Act, if executed or carried on by the County Council, the Company or any person authorised in that behalf by either of them, shall be deemed to be authorised by this Act notwithstanding that it would otherwise be actionable on the ground of nuisance. Authorisation
of works, etc.

(2) If, on a claim made in writing to the Company not later than the expiration of one month from the end of the period allowed by order under subsection (4) of the last foregoing section (or, if that period is extended by a further order under that subsection, then from the end of the period as extended), any person proves—

(a) that he has suffered loss by reason of any such execution of works or carrying on of an activity as is mentioned in the last foregoing subsection, and

(b) that apart from the provisions of that subsection the execution or carrying on thereof would have been actionable at his suit on the ground of nuisance,

he shall be entitled to recover from the Company compensation of an amount equal to the loss.

Application of provisions of 12 & 13 Geo. 6. c. 26. **5.**—(1) The following provisions of this section shall have effect for the purpose of applying, in relation to the gardens, certain provisions of the Act of 1949 relating to the exhibition.

(2) In section seven of the Act of 1949 (which provides for modifications of the Town and Country Planning Act, 1947), references to the exhibition site and the exhibition shall include references to Battersea Park and to the gardens respectively, and references to land held by the County Council shall include references to land held by the Company or any person appointed by them in pursuance of an authorisation under section one of this Act.

(3) In subsection (1) of section thirteen of the Act of 1949, in the definition of the expression “the exhibition traffic arrangements”, the reference to the exhibition shall include a reference to the provision of the gardens.

(4) For the avoidance of doubt it is hereby declared that the power of the County Council under subsection (1) of section five of the Act of 1949 to provide car parks in connection with the Festival includes power to provide car parks in connection with the gardens.

Special provisions as to festival works and entertainments.

6.—(1) After the appropriate date it shall be unlawful to use any works to which this section applies except with the consent of, and for a purpose approved by, the County Council; and, except in a case where the County Council authorise the retention of any such works, the Minister shall secure that such works are removed as soon as may be after the appropriate date.

(2) Works to which this section applies are hereby exempted from the operation of the provisions of the London Building Acts, 1930 to 1939 and byelaws made thereunder and of the provisions of Part II of the Public Health (London) Act, 1936 (except sections fifty-six to sixty-eight thereof, which relate to sewers) and byelaws having effect by virtue of that Act; and notwithstanding anything in any enactment a licence shall not be required by reason only of the provision of any entertainment to which this section applies.

(3) This section applies to works certified by the Minister to be executed for the purposes of the Festival of Britain, 1951, except that—

(a) this section shall not apply to works exempted, apart from this section, from the operation of so much of the London Building Acts, 1930 to 1939 as relates

to buildings and structures, so long as the works are so exempted ; and

(b) subsection (1) of this section shall not apply to works in Battersea Park.

(4) This section applies to the following entertainments, that is to say—

(a) public performances of stage plays,

(b) public music, dancing and other public entertainments of the like kind,

(c) public contests or displays of boxing or wrestling, and

(d) cinematograph exhibitions,

being in any case entertainments provided on or after the opening day of the exhibition and before the appropriate date on the site of the exhibition or in the gardens and certified by the Minister to be provided for the purposes of the Festival of Britain, 1951.

(5) In this section the expression “the appropriate date” means,—

(a) as respects any entertainment provided in the gardens, the appointed day ;

(b) as respects any other entertainment or any works, the closing of the exhibition.

(6) In this section the expression “works” includes buildings and structures, and references to the execution of works shall be construed accordingly.

7.—(1) In paragraph (b) of subsection (1) of section one of the Act of 1949 (which authorises the construction of landing stages giving access to the exhibition site), the reference to the exhibition site shall include a reference to the site of the gardens ; and in subsection (3) of the said section one (which provides that the works authorised by that section are to be made in the lines and situations and according to the levels shown on the deposited plans and sections) the reference to the deposited plans and sections shall include a reference to the plans and sections which were deposited with the clerk of the County Council in connection with the Bill for this Act. Provisions as to river traffic.

(2) The County Council may make and enforce byelaws for regulating the use of festival landing stages by persons or vessels generally, or persons or vessels of any description specified by or under the byelaws, and in particular byelaws under this subsection may make, or authorise the making of, provision as respects all or any such persons or vessels—

(a) for restricting the provision of passenger services to the provision thereof by persons authorised in that behalf,

(b) for fixing the times at which vessels may arrive at any festival landing stage and the periods for which they may remain there,

(c) for prohibiting the use of any festival landing stage by persons of specified descriptions or by vessels which do

not comply with specified conditions as to size, type and standard of accommodation,

(d) for fixing the fares chargeable to passengers and the charges to be paid for the use of any festival landing stage.

(3) The County Council and the Port of London Authority may jointly make, and either of them may enforce, byelaws for determining the priority to be accorded, in the use of such landing stages in the River Thames (not being festival landing stages) as may be specified in the byelaws, to persons or vessels using the festival landing stages or to such persons or vessels of any description so specified, any agreement or arrangement to the contrary notwithstanding.

(4) Sections one hundred and forty-seven to one hundred and forty-nine of the London Government Act, 1939 (which contain supplementary provisions as to byelaws) shall apply to byelaws made under subsection (3) of this section as they apply to byelaws made under subsection (2) thereof, but with the substitution for the references in the said sections to the local authority by which the byelaws were made of references to each of the authorities by which the byelaws were made.

(5) The confirming authority for all byelaws made under this section shall be the Minister of Transport.

(6) All such byelaws shall, unless previously revoked, cease to have effect on the appointed day.

Grants towards providing additional landing stages.

8. The Minister of Transport may with the approval of the Treasury make, and a metropolitan borough council may make, grants towards meeting any expenses incurred by the Port of London Authority in constructing (including, in the case of grants by a metropolitan borough council, expenses so incurred in maintaining and operating) such additional landing stages as, in the opinion of the said Minister, it is expedient to provide for use by vessels serving the festival landing stages; and a metropolitan borough council may borrow for the purposes of this section.

Payments out of moneys provided by Parliament.

9. There shall be defrayed out of moneys provided by Parliament—

(a) any expenses incurred by the Minister or the Minister of Transport under this Act;

(b) any increase attributable to the provisions of this Act in the sums payable out of moneys provided by Parliament under section eight of the Act of 1949 (which provides for grants from the Minister of Transport in respect of certain works).

Saving for powers of London County Council and

10. The powers conferred on the County Council and on the Port of London Authority by this Act shall be in addition to and not in derogation of any other powers of those bodies; and notwithstanding anything in section one of this Act the powers

of the County Council (whether under Part V of the London Port of County Council (General Powers) Act, 1935 or otherwise) to London Authority. make provision for persons resorting to open spaces shall apply to persons resorting to the gardens as they apply to other persons resorting to Battersea Park.

11.—(1) This Act may be cited as the Festival of Britain Short title, (Supplementary Provisions) Act, 1949. interpretation, etc.

(2) In this Act the following expressions have the meanings hereby assigned to them respectively, that is to say—

“ Act of 1949 ” means the Public Works (Festival of Britain) Act, 1949 ;

“ appointed day ” means such day as the Minister may by order appoint as falling six months after the day on which the gardens were first open to the public ;

“ the Company ” means any company formed for the purpose of managing the gardens ;

“ the County Council ” means the London County Council ;

“ the exhibition ” has the meaning assigned to it by the Act of 1949 ;

“ festival landing stages ” means the landing stages authorised by paragraph (b) of subsection (1) of section one of the Act of 1949 as extended by this Act ;

“ the gardens ” means festival gardens provided or to be provided on lands enclosed or to be enclosed by virtue of subsection (1) of section one of this Act ;

“ the Minister,” as respects any provision of this Act, means such Minister of the Crown as His Majesty may by Order in Council appoint either generally or in relation to that provision.

(3) Any Order in Council under this section may be revoked or varied by a subsequent such Order made thereunder.

Table of Statutes referred to in this Act

Short Title	Session and Chapter
London County Council (General Powers) Act, 1935	25 & 26 Geo. 5. c. xxxiii.
Public Health (London) Act, 1936	26 Geo. 5 & 1 Edw. 8. c. 50.
London Government Act, 1939	2 & 3 Geo. 6. c. 40.
Town and Country Planning Act, 1947	10 & 11 Geo. 6. c. 51.
Public Works (Festival of Britain) Act, 1949	12, 13 & 14 Geo. 6. c. 26.
London County Council (Money) Act, 1949	12, 13 & 14 Geo. 6. c. xxxi.